

our said Court by (*here insert names of Plaintiff in full, as in the Bill,*) and observe what our said Court shall direct in that behalf. Witness the Honorable William Hume Blake, our Chancellor, this day of 185 in year of our reign.

(Name of Registrar.)
Registrar.

(Name of Solicitor.)
Plaintiff's Solicitor.

The following Memorandum to be placed at the foot.

Memorandum
at foot of
Subpœna.

Appearances are to be entered at the Registrar's office at Osgoode Hall in the City of Toronto; and, if you do not cause your appearance to be entered within the time limited by the above writ, an appearance will be entered for you at your expense; and, if you do not answer or demur to the bill within you will be subject to such order or decree being made against you as the Court shall think just upon the plaintiff's own showing---(*where the defendant is to be served out of the jurisdiction, add the following words*)---without further notice.

Defendant has only fourteen days to demur alone, notwithstanding the words of the memorandum.

The form of this Memorandum would seem to give rise to reasonable doubt, whether or not the Defendant has the same time to demur alone as to answer, or answer and demur. The 27th New Order, (1850), commences with these words.—“A Defendant is to answer or demur, *not demurring alone*, to any original bill, or bill amended before answer, within one month after appearance,” &c. And the 26th New Order gives only fourteen days to demur alone. Whatever may be the apparent meaning of the above form of notice then, a defendant on receiving it is to understand, that, if he elects to demur alone to the Plaintiff's Bill, he must do so within fourteen days after his appearance. It has been suggested, that it would be as well to insert in the memorandum the words “not demurring alone,” but this, it has been intimated by the Court, would be a departure from the Order, which prescribes the form, and therefore incorrect.

Mode of service
of Subpœna.

Service of the Subpœna is by delivering a copy to the Defendant personally (with some exceptions) and producing and showing the original writ. The affidavit of service must state when and how the service was effected.

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